

Thirdly, that the words themselves are not actionable, whensoever spoken.

[407] For the first point, precedents were appointed to be searched, where, from the report of the speech of another who never spake such word, an action would lie; and a precedent was shewn, *Lady Morison v. Carr (a)*, action, for that he said, Arscot had reported he had the use of her body, *ubi revera* he never spake any such words; it was adjudged for the plaintiff, and affirmed in a writ of error.

The Court therefore was satisfied in this point, that the report of the speech of another who never used such words is chargeable; but for the other points they would advise (*b*).

CASE 3. MEMORANDUM.

Upon the 18th of November in this term Sir Henry Montague was made Chief Justice of the King's Bench, in the place of Sir Edward Coke, the late Chief Justice; who, being in the King's displeasure, was removed from his place by a writ from the King, reciting, that whereas he had appointed him by writ to that place, that he had now moved him, and appointed him to desist from the further executing thereof. And now this day Egerton, Lord Chancellor, came into the King's Bench, and Sir Henry Montague, one of the King's serjeants, being accompanied with Hutton, Serjeant, and Francis Moore, Serjeant, came to the middle of the Bar, and then the Lord Chancellor delivered to him the King's pleasure to make choice of him to that place; and after Montague, Sergeant, had made his answer (*c*), and returned thanks, and testified his endeavour for the well executing the said place, he was brought into the Bar, and there took his oath; and after the writ read, the Lord Chancellor delivered it to him, and he was placed in the Chief Justice's seat.

CASE 4. SIR JOHN SYDENHAM *against* MAN.

Michaelmas Term, 13 Jac. 1. Roll 343.

If a special verdict find slanderous words as laid in the declaration, but superadd that they were spoken conjecturally, as "I think in my conscience, &c." yet the plaintiff shall have judgment. *Ante*, 55. *Post*. 476. 469.

S. C. 1 Roll. Rep. 427. S. C. Hob. 180. 1 Roll. Ab. 48. 2 Roll. Abr. 718. Hob. 52. 54. 180. Cro. Car. 130. 219. 1 Vent. 59. 1 Com. Dig. 186. 2 Saund. 308. 5 Bac. Abr. 309. 1 Term Rep. 320.

Action on the case for these words: "If Sir John Sydenham might have his will, he would kill all the true subjects of England, and the King too; and he is a maintainer of papistry and rebellious persons."

The defendant pleaded, that he spake other words; *absque hoc*, that he spake those.

The jury find that he spake these words, "I think in my conscience, if Sir John Sydenham, &c." and found all the other words *verbatim*, and conclude, *Si super totam materiam* he spake the words *formâ quâ* the plaintiff declared, they find for the plaintiff to his damage of one hundred and sixty marks; if otherwise, for the defendant. Upon this verdict judgment was prayed for the plaintiff.

Montague, Chief Justice, Croke, and Doderidge, held, that this verdict is found for the plaintiff; for when they find that the [408] defendant spake all those words in the declaration, and these words more, "I think in my conscience, &c." which are not words of extenuation, nor alteration of the sense of the other words, but rather enforceth them; for that shews that he thought it, and thought it in his conscience, which is a corrupt conscience; and the words by themselves, as they are in the declaration, will clearly maintain an action, and the addition of these words will not detract from them, but enforce them: and there is no cause to stay the plaintiff's judgment; for although he declares of more words than he spake, yet he declaring

(a) *Ante*, 162.

(b) It was moved again in Hilary term, and adjudged for the plaintiff. *Post*. 413.

(c) See the Chancellor's speech, and Sir Henry Montague's answer, Moor, 816. to 830.